

TENTATIVE RULING

Case: State Farm General Insurance Company v. Quenga
Case No. CV2025-2379

Hearing Date: March 5, 2026 **Department Eleven** **9:00 a.m.**

Demurrer:

The Court rules on defendant Barbara Quenga's demurrer to plaintiff's complaint as follows:

- Defendant's demurrer to all causes of action in the first amended complaint on the ground of uncertainty is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (f).) The Court finds that the allegations of the complaint are sufficiently clear apprise defendants of the issues she is to meet. (See *Gressley v. Williams* (1961) 193 Cal.App.2d 636, 643; see also *A.J. Fistes Corp. v. GDL Best Contractors, Inc.* (2019) 38 Cal.App.5th 677, 695 citing *Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 616 ["A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures."]; FAC, ¶¶ 2 and 6 - 9.)
- Defendant's demurrer to all causes of action in the first amended complaint on the ground that they fail to state facts to constitute any cause of action is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (e).) The Court finds that the allegations of the first amended complaint sufficiently allege defendant's ownership, possession, control, duty, and actual or constructive notice. (See *Krug v. Meeham* (1952) 109 Cal.App.2d 274, 277; FAC, ¶¶ 2, 6 - 9, 11, 12, 15, 21, 22 and 34.)
- Defendant's demurrer to the first amended complaint on the ground that plaintiff fails to allege subrogation standing is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (e); see *Oakland Municipal Improv. League v. City of Oakland* (1972) 23 Cal.App.3d 165, 170.) The Court finds that there are sufficient allegations to support plaintiff's subrogation standing. (See *Fireman's Fund Ins. Co. v. Maryland Casualty Co.* (1998) 65 Cal.App.4th 1279, 1291-1293; *Pacific Gas & Electric Co. v. Superior Court* (2006) 144 Cal.App.4th 19, 23; FAC, ¶¶ 2, 6 - 9, 13, 16, 17, 19, 23, 24, 27, 28, 31 and 35 - 38.)
- Defendant's demurrer to the first cause of action for negligence on the ground that it fails to state facts to constitute a cause of action is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (e).) The Court finds that plaintiff has sufficiently alleged facts to support a cause of action for negligence. (See *Ladd v. County of San Mateo* (1996) 12 Cal.4th 913, 917-918; see also *Guilliams v. Hollywood Hospital* (1941) 18 Cal.2d 97, 101 ["it is established that a cause of action may be stated in which negligence is alleged in general terms, without detailing the specific manner in which the injury occurred."]; FAC, ¶¶ 2, 6 - 9, 11 - 13.)

- Defendant’s demurrer to the second cause of action for trespass on the ground that it fails to state facts to constitute a cause of action is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (e).) The Court finds that defendant fails to provide any published and/or relevant legal authority in support of this ground. (Cal. Rules of Court, rule 3.1113(b); *Quantum Cooking Concepts, Inc. v. LV Associates, Inc.* (2011) 197 Cal.App.4th 927, 934 [where a motion is supported by a deficient memorandum, the trial court is justified in denying the motion on procedural grounds]; *Hood v. Gonzales* (2019) 43 Cal.App.5th 57, 73 – 74 [every brief should contain a legal argument with citation of authorities on the points made and if none is furnished on a particular point, the court may treat it as waived and pass it without consideration].)
- Defendant’s demurrer to the third cause of action for private nuisance on the ground that it fails to state facts to constitute a cause of action is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (e).) The Court finds that defendant fails to provide any published and/or relevant legal authority in support of this ground. (Cal. Rules of Court, rule 3.1113(b); *Quantum Cooking Concepts, Inc., supra*, 197 Cal.App.4th at p. 934; *Hood, supra*, 43 Cal.App.5th at pp. 73 – 74.) The Court further finds that plaintiff has sufficiently alleged facts to support a cause of action for private nuisance. (See *Lussier v. San Lorenzo Valley Water Dist.* (1988) 206 Cal.App.3d 92, 101; FAC, ¶¶ 2, 6 – 9 and 21 – 26.)
- Defendant’s demurrer to the fourth cause of action for premises liability on the ground that it fails to state facts to constitute a cause of action is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (e).) The Court finds that defendant fails to provide any published and/or relevant legal authority in support of this ground. (Cal. Rules of Court, rule 3.1113(b); *Quantum Cooking Concepts, Inc., supra*, 197 Cal.App.4th at p. 934; *Hood, supra*, 43 Cal.App.5th at pp. 73 – 74.) The Court further finds that plaintiff has sufficiently alleged facts sufficient to state a cause of action for premises liability (See *Kesner v. Superior Court* (2016) 1 Cal.5th 1132, 1159 [“In determining whether a premises owner owes a duty to persons on its property, we apply the *Rowland* factors. Indeed, *Rowland* itself involved premises liability.”]; *Brooks v. Eugene Burger Management Corp.* (1989) 215 Cal.App.3d 1611, 1619 [“Premises liability is a form of negligence based on the holding in *Rowland v. Christian, supra*, 69 Cal.2d 108, and is described as follows: The owner of premises is under a duty to exercise ordinary care in the management of such premises in order to avoid exposing persons to an unreasonable risk of harm. A failure to fulfill this duty is negligence”]; FAC, ¶¶ 2, 6 – 9 and 33 – 36.)

The notice of demurrer does not provide notice of this Court’s tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Motion to strike:

Defendant Barbara Quenga's request for judicial notice is **GRANTED**. (Evid. Code, §§ 452, subd. (d), 453.)

Defendant's motion to strike portions of plaintiff's complaint is **DENIED**. (Code Civ. Proc., § 435, 436.) The Court finds that that defendant fails to show how the allegedly conclusory allegations within paragraphs 11, 12, 15, 21, 26 and 29 of the first amended complaint are extraneous to the factual bases for plaintiff State Farm General Insurance Company's causes of action. (*Young v. Midland Funding LLC* (2023) 91 Cal.App.5th 63, 96.) Further, defendant's arguments raised regarding paragraphs 11, 12, 15, 21, 26, 29, 33 and 34 of the first amended complaint are improper as they were addressed in defendant's demurrer. (*CLD Construction, Inc. v. City of San Ramon* (2004) 120 Cal.App.4th 1141, 1146 ["A motion to strike under section 435 et seq. is traditionally used to reach pleading defects that are not subject to demurrer."].) The Court also finds that the allegations defendant seeks to strike within paragraphs 11, 12, 15, 21, 26, 29, 33 and 34 of the first amended complaint are so broad as to include relevant matters. (*Young v. Midland Funding LLC* (2023) 91 Cal.App.5th 63, 96.) Finally, the Court finds that the allegations defendant seeks to strike within paragraphs 13, 19, 31 and 38 of the first amended complaint are not improperly inserted in the pleading; they sufficiently alleged a claim for prejudgment interest. (*North Oakland Medical Clinic v. Rogers* (1998) 65 Cal.App.4th 824, 829 ["A general prayer in the complaint is adequate to support an award of prejudgment interest."].)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Case management conference:

Parties are **DIRECTED TO APPEAR**.